

**CHAPTER xxvi.**

An Act to incorporate the Ely Rural District Water A.D. 1911.
Company and to confer powers upon that Company
in connexion with the supply of water.

[2nd June 1911.]

WHEREAS the affording of a supply of water by the Company incorporated by this Act to certain parts of the rural district of Ely in the Isle of Ely as by this Act provided would be of public and local advantage:

And whereas the persons in that behalf in this Act named with others are willing on being incorporated into a company with the necessary powers for such purpose to undertake the supply of water to such parishes and places and it is expedient that they should be incorporated accordingly and that such other powers as are in this Act contained should be conferred on them for the better and more effectually carrying the purposes of this Act into effect:

And whereas plans and sections showing the lines situations and levels of the works authorised by this Act and also a book of reference to the plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the Isle of Ely and the same are in this Act referred to as the deposited plans sections and book of reference:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

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—

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited for all purposes as the Ely Rural District Water Act 1911.

Incorporation of general Acts.

2. The following Acts and parts of Acts (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts the Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of that Act "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner") and the Waterworks Clauses Act 1863.

Interpretation.

3. In this Act the several words and expressions hereinafter mentioned have the meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say):—

Words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings;

The expression "the Company" means the Company incorporated by this Act.

Company incorporated.

4. Joseph Martin Henry Tansley Luddington Frederick Andrew Davies Thomas John Mott Samson Spooner Heber Gambling Martin and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a Company for the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of "The Ely Rural

District Water Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. A.D. 1911.

5. The Company shall be established for the purpose of supplying water and may sell dispose of and deal in water and generally may carry on the business usually carried on by water companies. General purposes of Company.

6. The capital of the Company shall be thirty thousand pounds in thirty thousand shares of one pound each. Capital.

7. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof. Issue of shares.

8. One fifth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls. Calls.

9. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one third part of the amount of the capital which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued have been fully paid up. Power to borrow.

10. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole. For appointment of a receiver.

11. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

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Debenture
stock.

12. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application
of moneys.

13. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

First ordi-
nary meeting.

14. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of
directors.

15. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Qualification
of directors.

16. The qualification of a director shall be the possession in his own right of not less than one hundred shares.

Quorum.

17. The quorum of a meeting of directors shall be three.

Directors.

18. Henry Tansley Luddington Heber Gambling Martin Thomas Peake and any two other persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being if they continue qualified eligible for election.

At the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in

person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies' Clauses Consolidation Act 1845. A.D. 1911.

The several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead.

19. The limits of this Act for the supply of water shall be so much of the rural district of Ely as is bounded on the west side by the New Bedford River or Hundred Foot drain and on the east and south sides by the River Ouse in the Isle of Ely which limits are in this Act referred to as "the limits of supply." Limits of
Act for
water pur-
poses.

20. If at any time after the expiration of five years from the passing of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act throughout the district of any local authority within the limits of supply the local authority of that district may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Company as if in either case this Act had not passed. If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade. Power to
local autho-
rity to supply
water in case
Company
fails to
supply.

21. Subject to the provisions of this Act the Company may upon the lands delineated on the said deposited plans and in the lines and situations and according to the levels shown on the said deposited plans and sections make and maintain the following works (that is to say):— Power to
make works.

In the Isle of Ely—

In the parish of Wilburton—

Work No. 4 A well and pumping station in the
centre or thereabouts of the field or inclosure No^d. 96

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on the Ordnance map of the parish of Wilburton
(scale $\frac{1}{2500}$ second edition 1902):

In the parish of Haddenham—

Work No. 5 A well pumping station and water tower situate in the field or inclosure No^d. 555 on the Ordnance map of the parish of Haddenham (scale $\frac{1}{2500}$ second edition 1902):

In the parishes of Coveney and Downham—

Work No. 6 A line or lines of pipes commencing in the parish of Coveney commencing in the centre of the road leading from Wilbey Hill Farm to Coveney, at a point opposite the south-west corner of Hall Fen House and terminating in the parish of Downham in the centre of the road leading from Downham Hythe to Downham at its junction with Redcaps Lane:

In the parish of Littleport—

Work No. 7 A reservoir or water tower situate in the north-east corner of the field or enclosure No^d. 1698 on the Ordnance map of the parish of Littleport (scale $\frac{1}{2500}$ second edition 1902).

In addition to the foregoing works the Company may upon such of the said lands as are situate in the Isle of Ely make and maintain all such cuts channels catch-waters tunnels adits pipes conduits culverts drains sluices bye-washes shafts wells bores water towers overflows waste-water channels gauges filter beds tanks stand pipes banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Power to
take lands
and waters.

22. Subject to the provisions of this Act the Company may enter upon take and use such of the lands described in the deposited plans and book of reference as are situate in the Isle of Ely as they may require for the purposes of this Act and may take use and appropriate for the purposes of the works and undertaking of the Company all such waters as may be intercepted by the works by this Act authorised.

23. Subject to the provisions of this Act the Company may in constructing the works authorised by this Act deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown and defined thereon and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards or to any extent downwards Provided that when any work is to be made on any road the limits of lateral deviation if not otherwise laid down shall be the boundaries of such road and except for the purposes of crossing over a stream no pipe or main shall be laid above the general surface of the ground unless so shown on the deposited sections and then only to the extent so shown.

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Limits of
lateral and
vertical
deviation.

24. The Company shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting
powers of
Company
to abstract
water.

25. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall not be exercised after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

26. The works by this Act authorised shall be commenced within three years and shall be completed within five years from the passing of this Act and on the expiration of that period of five years the powers by this Act granted to the Company for making the said works or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion
of works.

27.—(1) The Company may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

Company
may acquire
easements
only in cer-
tain cases.

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(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Power to
owners to
grant ease-
ments &c.

28. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which parties other than the grantors have an interest) required for the purposes of this Act in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
hold lands
for protec-
tion of water-
works.

29. The Company may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the Company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Power to
agree as to
drainage of
lands.

30. The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the wells and other works by this Act

authorised with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated* by the Company flowing to or upon or from such lands directly or derivatively into such wells and works. A.D. 1911.

31. The Company shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum herein-after specified (that is to say) :— Rates at which water is to be supplied for domestic purposes.

Where the rateable value of the premises so supplied does not exceed five pounds per annum the sum of eight shillings and eightpence per annum :

Where such rateable value exceeds five pounds but does not exceed twenty pounds per annum the rate of eight pounds per centum per annum upon such value :

Where such rateable value exceeds twenty pounds but does not exceed forty pounds the rate of seven pounds ten shillings per centum per annum upon such value :

Where such rateable value exceeds forty pounds but does not exceed sixty pounds the rate of seven pounds per centum per annum upon such value :

Where such rateable value exceeds sixty pounds but does not exceed eighty pounds the rate of six pounds ten shillings per centum per annum upon such value :

Where such rateable value exceeds eighty pounds but does not exceed one hundred pounds the rate of six pounds per centum per annum upon such value :

Where such rateable value exceeds one hundred pounds the rate of five pounds per centum per annum upon such value :

Provided that the Company shall not be entitled in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum

A.D. 1911. of money than they would be entitled to demand if such house or part of a house were of just sufficient rateable value to bring it within the next division of the said scale relating to premises of a higher rateable value whereon a lower rate per centum per annum is chargeable.

For the purposes of this section the rateable value shall be the net rateable value as ascertained by the valuation list in force at the commencement of the quarter in which the water rate accrues or if there is no such list in force by the last rate made for the relief of the poor.

When the water rate is chargeable on the rateable value of a part only of any premises entered in the valuation list or poor rate (such part not being separately assessed to the rate for the relief of the poor) such rateable value shall be a fairly apportioned part of the rateable value of the whole premises ascertained as aforesaid the apportionment in case of dispute to be determined by two justices.

In addition to the rates computed as above specified the Company may demand and take for the supply of water—

For every watercloset beyond the first (for which no additional charge shall be made) on any premises within the water limits a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding five shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Company may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Charges for
supply of
water for
other than
domestic
purposes.

32.—(1) The Company may supply water for other than domestic purposes on such terms and conditions as the Company think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply under this section shall be recoverable as water rates.

(2) The Company shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

(3) Where a water supply to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof. A.D. 1911.

(4) The Company shall not charge a higher rate than one shilling and sixpence per thousand gallons for any supply by meter given under this section.

(5) No person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

33. A supply of water for domestic purposes shall not include a supply of water for cattle or for horses or for washing carriages motor cars or other vehicles or for any trade manufacture or business or for washing house or shop fronts or windows by means of a hose or jet or for watering gardens for fountains or for any ornamental purposes whatever. Limitation of domestic purposes.

34.—(1) If it shall be proved that the pumping by the Company at the pumping stations by this Act authorised has caused any diminution of the supply in any well being in existence at the time of the passing of this Act as an effective source of supply and situate within a radius of three-quarters of a mile from either of the said pumping stations the Company shall upon the written request of the owner (which term shall include any lessee or occupier) of such well and subject to the provisions of this Act and the Acts incorporated therewith afford a supply of water for domestic or other purposes at rates and charges not exceeding seventy-five per centum of the rates and charges for the time being made under the provisions of this Act. For protection of wells in neighbourhood of pumping stations.

(2) The Company may if they think fit in lieu of giving a supply upon the reduced terms mentioned in subsection (1) of this section deepen the affected well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the owner shall without asking any charge therefor give the Company access and every facility for carrying out such deepening borings or headings.

(3) If the Company refuse to give the owner of such well a supply upon the reduced terms mentioned in subsection (1)

A.D. 1911. or to deepen the affected well so as to give a supply equal to the diminution as aforesaid they shall make compensation in money to the owner of such well for such diminution and they shall also make like compensation for any injury caused to such owner by the exercise by the Company of the powers conferred by the last preceding subsection or by the diminution of the supply in such well prior to the Company having made good such diminution or paid compensation therefor the amount of such compensation to be settled in case of difference by arbitration as herein-after provided.

(4) The Company shall not be liable in respect to any claim made by the owner under this section if he shall have failed to afford to the officers servants or other representatives of the Company at all reasonable times after the passing of this Act access to the well in respect of which the claim is made for the purpose of ascertaining particulars thereof and the level of the water therein.

(5) Any question or dispute arising under this section shall be referred to and determined by a single arbitrator to be agreed on between the parties or in default of agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to the reference.

Contracts for
supplying
water in
bulk.

35. The Company may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the water limits to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

Rate pay-
able by
owners for
small houses.

36. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the

owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1911.

37. The Company shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water. Company not bound to supply several houses by one pipe.

38. The water to be supplied by the Company need not be constantly laid on under pressure greater than can be supplied by gravitation from the reservoir or other work from which the supply shall be taken. Pressure.

39. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company. Notice of discontinuance.

40.—(1) The Company may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of the pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Company are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) All such byelaws shall be subject to the provisions contained in sections 182 183 184 and 186 of the Public Health Act 1875 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the Company were a local authority within the meaning of those sections and the secretary of the Company were the clerk of the local authority.

A.D. 1911.

(4) A copy of all such byelaws in force for the time being shall be kept at the office of the Company. All persons may at all reasonable times inspect such copy without payment and the Company shall cause to be delivered a printed copy of all byelaws for the time being in force to every person applying for the same on payment of a sum not exceeding sixpence for each copy.

(5) In case of failure of any person to observe such byelaws as are for the time being in force the Company may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Company as the water rates in respect of the premises are recoverable.

Company to
keep meters
in repair.

41. The Company shall at all times at their own expense keep all meters or other instruments for measuring water let by them for hire to any consumer in proper order for correctly registering the supply of water and in default of their so doing the consumer shall not be liable to pay rent for the same during such time as such default continues. The Company shall for the purposes aforesaid have access to and be at liberty to remove test inspect and replace any such meter or other instrument at all reasonable times.

Register of
meter to be
evidence.

42. Where the Company supply water by measure the register of the meter or other instrument for measuring water shall be *prima facie* evidence of the quantity consumed and in respect of which any water rate is charged and sought to be recovered by the Company. Provided always that if the Company and the consumer differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Power for
Company
to supply
materials.

43. The Company may if requested by any person supplied or about to be supplied by them with water provide and furnish to him and from time to time repair or alter but shall not manufacture any such meters pipes valves cocks baths soil-pans

waterclosets boilers cisterns fountains filters fittings apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Company in providing such materials and executing such work shall be paid by the person requiring the same. A.D. 1911.

44. The Company by their agents or workmen after forty-eight hours' notice in writing under the hand of the secretary or some other officer of the Company to the occupier or if there is no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Company is laid or fixed and through or in which the supply of water is from any cause other than the default of the Company discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal. Power to remove meters and fittings.

45. Before any person connects or disconnects any meter by means of which any of the water of the Company is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Company of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Company of connexion or disconnection of meters.

46. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Company or who fraudulently alters the index to any meter or prevents any meter from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained and in any case in which any person has wilfully Penalties for injuring meters &c.

A.D. 1911. fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to
lay pipes in
streets not
dedicated to
public use.

47. The Company may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and for that purpose the provisions of the Waterworks Clauses Act 1847 shall apply as if the street were land dedicated to public use.

Power to
Ely Rural
District
Council to
purchase
undertaking.

48.—(1) If at any time after twenty-five years from the passing of this Act the Ely Rural District Council (in this Act referred to as "the council") shall apply to Parliament for power to purchase the undertaking of the Company the Company shall not oppose such application except in so far as may be necessary in order to secure the insertion in any Bill introduced into Parliament to authorise such purchase of clauses to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit and if such powers of purchase be granted the Company shall sell and transfer and the Council shall purchase and acquire the undertaking of the

Company free from all debts mortgages debentures debenture stock or similar obligations of the Company or attaching to the undertaking. A.D. 1911.

(2) Any such sale and purchase shall be for such price being a sum in gross as represents the market value of the undertaking of the Company as a going concern but without any allowance for compulsory purchase and upon such terms and conditions as may be mutually agreed upon or failing agreement as may be determined by an engineer to be agreed upon between the council and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

49. Notwithstanding anything in this Act contained the Company shall not enter upon take or use either permanently or temporarily any lands or property of the Great Eastern Railway Company without the previous consent in writing of that company. For protection of Great Eastern Railway Company.

50. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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